

M/S Jalan Jee Polytex (P) Ltd. v. Electricity Ombudsman, U.P. and Others

High Court of Judicature at Allahabad · Lucknow Bench · 11 November 2024 · Writ - C No. 9469 of 2024 · **Recovery stayed on deposit of Rs.10 lakh; writ listed**

HEADNOTE

Writ against the Electricity Ombudsman's order of 27.09.2024, said to have reversed a CGRF direction to recalculate demand under clause 5.6(c)(ii) of the U.P. Electricity Supply Code, 2005, was listed for consideration. Till the next date, recovery under the two orders was stayed subject to deposit of Rs.10,00,000 before opposite party no. 3 within six weeks, with regular bills to be paid as raised. On 06.01.2025 the interim order was continued and time to file the counter-affidavit was limited to three weeks. The clause was not construed.

FACTUAL SUMMARY

M/S Jalan Jee Polytex (P) Ltd., through its director, petitioned the Lucknow Bench against the Electricity Ombudsman, Uttar Pradesh, and three other respondents. The company challenged the Ombudsman's order dated 27 September 2024. Its case was that the Consumer Grievance Redressal Forum had directed recalculation of the demand under clause 5.6(c)(ii) of the U.P. Electricity Supply Code, 2005, and that the Ombudsman had decided the complaint contrary to that direction. Counsel for the Ombudsman and for respondents 2 to 4 accepted notice.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

admission and interim stay of recovery

HOLDING

The writ was treated as requiring consideration. A counter-affidavit within four weeks and a rejoinder within two weeks thereafter were directed, with listing after six weeks. Till the next date of listing, recovery in pursuance of the two orders was stayed subject to the petitioner depositing Rs.10,00,000 before opposite party no. 3 within six weeks, and the petitioner was directed to pay regular bills as and when raised. On 6 January 2025 the respondents were given three weeks and no more to file the counter-affidavit, and the interim order was continued. Clause 5.6(c)(ii) was recorded only as the petitioner's contention and was not construed. ¶ 4-8

PRINCIPLE TAGS

procedural-listing-no-construction

The writ against the Ombudsman order was admitted and listed. Recovery was stayed only till the next date, and only on deposit of Rs.10 lakh with current bills to be paid. No supply-code clause was applied. ¶ 4-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY OMBUDSMAN ERRED IN DECIDING AGAINST THE CGRF DIRECTION TO RECALCULATE THE DEMAND UNDER CLAUSE 5.6(C)(II) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Left open as a matter requiring consideration; counter-affidavit and rejoinder were directed and the interim stay was continued on 06.01.2025. ¶ 3-4

